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Case Number: 24BBCV00120 Hearing Date: August 7, 2026 Dept: A

TENTATIVE RULING

AUGUST 7, 2026

MOTIONS FOR PROTECTIVE ORDER RE DEPOSITIONS

Los

Angeles Superior Court Case # 24BBCV00120

MP: Defendant Los

Angeles County Metropolitan Transportation Authority

RP: Plaintiff

Yofiel Bibi

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given

either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

A.

Complaint

Yofiel Bibi, a minor, by and through his Guardian Ad Litem,

Sharon Bibi ("Plaintiff") alleges that on September 11, 2023 at approximately 8:00 p.m., he was riding a non-electric scooter at the Chandler Boulevard and Bellaire Avenue intersection in Valley Village.

As Plaintiff turned left, he was struck by a bus operated by Defendant Los Angeles County Metropolitan Transportation Authority ("LACMTA"). Plaintiff asserts that he submitted government claims with Defendants City of Los Angeles ("City") and County of Los Angeles ("County"), but City and County each denied his claims.

The Complaint, filed January 16, 2024, alleges: (1) Negligence – Motor Vehicle; (2) Negligence (Gov. Code, § 815.2(a)); (3) Negligence – Premises Liability; (4) General Negligence; and (5) Dangerous Condition of Public Property (Gov. Code, § 835). On April 6, 2026, Plaintiff named Woods Maintenance Services, Inc. (Doe 1, "Woods").

B.

Cross-Complaint

On April 17, 2024, City filed a cross-complaint against LACMTA for: (1) Indemnification; (2) Apportionment of Fault; and (3) Declaratory Relief.

On March 27, 2026, LACMTA filed a cross-complaint against Woods for: (1) Indemnification; (2) Apportionment of Fault; (3) Declaratory Relief; and (4) Contractual Defense and Indemnification.

On May 6, 2026, Woods filed a cross-complaint against Roes 1-10 for: (1) Indemnity; (2) Contribution and Apportionment; and (3) Declaratory Relief.

MOTIONS ON CALENDAR:

On May 29 and June 5, 2026, LACMTA filed two Motions for Protective Orders re Depositions of: (1)

Gary Ross; and (2) Pete Mellon. On July 27, 2026, Plaintiff filed oppositions. On July 31, 2026, LACMTA filed a reply to the opposition regarding Gary Ross.

LEGAL STANDARD:

“Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (C.C.P. § 2025.420(a).) “The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense,” including that the deposition not be taken at all. (C.C.P. § 2025.420(b)(1).)

EVIDENTIARY OBJECTIONS:

With the opposition, Plaintiff submitted objections to the declarations of Alberto Vazquez, LACMTA's Manager, General Liability Claims).

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Mr. Vazquez's Declaration in support of the motion directed at Gary Ross: Objection Nos. 1, 2, 4, and 5 to paragraphs 7, 8, 10, and 14 (improperly cited as paragraph 12 in the evidentiary objection) are sustained.
Objection No. 3 to paragraph 9 is overruled.

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Mr. Vazquez's Declaration in support of the motion directed at Pete Mellon: Objection Nos. 1, 2, 4, and 5 to paragraphs 7, 8, 10, and 13 (improperly cited as paragraph 12 in the evidentiary objections) are sustained.
Objection No. 3 to paragraph 9 is overruled.

ANALYSIS:

LACMTA moves for protective orders regarding the depositions of Gary Ross and Pete Mellon.

A.

Gary Ross

On

May 22, 2026, the Court: (1) granted Plaintiff's motion to compel LACMTA's PMQ's deposition; and (2) denied in part Plaintiff's motion to compel LACMTA's employees as to Jose Saucedo, and granted the motion in part as to the remaining 11 witnesses (Mr. Gomez, Lewis Simms, T. Simmon, Gary Ross, Manager Williams, Roman Alarcon, Mr. DeJoseph, Alfonso Munoz, Deckar Alexander, Sam Hooper, and Derek Brown). On June 26, 2026, the Court denied LACMTA's Motion for Reconsideration of the Court's Ruling on Plaintiff's Motion to Compel Deposition of LACMTA's Employees.

LACMTA moves for

a protective order of Mr. Ross's deposition—an accident investigator whose involvement LACMTA claims arose solely from its post-incident investigation undertaken at the direction of County Counsel, LACMTA's legal team, and LACMTA's Risk Management Department, and in anticipation of litigation. It argues Mr. Ross's deposition should not be taken at all because he is not a percipient witness, any knowledge was acquired solely through post-incident investigations upon counsel's direction and in anticipation of litigation, the testimony is privileged, Plaintiff's re-noticing of Mr. Ross's deposition after prior objection and withdrawal is harassing and unduly burdensome, and Plaintiff should not be able to use Woods' improperly produced materials to obtain further discovery. LACMTA argues Mr. Ross's testimony is subject to the attorney-client privilege and work product doctrine and that Plaintiff should not be permitted to use privileged material improperly produced by a third party as a roadmap to identify, target, and depose LACMTA's privileged investigative witnesses (including Mr. Ross and Mr. Mellon).

LACMTA argues

that Plaintiff's efforts to depose Mr. Ross are not isolated to ordinary discovery, but to documents improperly produced by Woods despite LACMTA's privilege objections. (Citron Decl., Ex. 15 [May 3, 2026 Email].) In the May 3, 2026 email, Plaintiff's counsel Tom Schultz stated, "Based on the limited documents produced by Woods (a handful of emails/documents, invoices, and an unsigned contract and one of the modification, number 9), I know the below documents exist and pursuant to your responses you stated you would provide them going back to 2019: ... Please also provide deposition dates for the

following MTA witnesses: Maral Minassian, Gary Ross, Steve Flores, Sharif Ford, Peter Mellon and provide a date when we can expect the above documents” (Id.) In response, LACMTA’s counsel Mr. Citron stated that they would not be producing the four individuals as they were part of the investigation team post-incident. (Id., Ex. 16.) Mr. Schultz responded that: (1) Ms. Minassian was the project administrator on contract with Woods, she was on countless invoices with Woods produced from its subpoena on Woods, and Woods produced emails showing Ms. Minassian regarding photos taken on the night of the incident, etc.; and (2) Mr. Mellon was on a spreadsheet produced by Woods, such that Plaintiff wanted to depose him on all prior incidents. (Id., Ex. 17.)

LACMTA provided a privilege log to Plaintiff’s RPDs, indicating that certain documents were privileged, including some documents provided by Woods. (Citron Decl., Ex. 1 [RPD Requests], Ex. 2 [Privilege Log].) Thereafter, LACMTA sent an amended privilege log. (Id., Ex. 5 [Amended Privilege Log].) Relevant to the four motions, the amended privilege log among other documents, lists as privileged documents: (1) an email thread with Gary Ross, Steve Flores, Maral Minasian, Raymond Lopez, and Carlos Martinez from September 13 to November 6, 2023; (2) emails and photos of the hedges by Maral Minasian on April 25, 2024; (3) Incident Report dated May 9, 2024 by Maral Minasian; (4) Incident Report dated July 3, 2024 by Peter Mellon; and (5) email dated October 14, 2025 by Maral Minasian.

The Court denies the motion for protective order as to Mr. Ross.

The Court already granted Plaintiff’s opposed motion to compel the deposition of LACMTA’s employees, of which Mr. Ross was included in the list. As summarized above, the Court also denied LACMTA’s motion for reconsideration on that order, thereby allowing Mr. Ross’s deposition to proceed. The Court notes that producing these employees for their depositions does not mean that LACMTA and its counsel are barred from raising objections at the deposition. If there are legitimate objections based on the attorney-client privilege and/or attorney work product doctrine, then those objections may be raised at the time of the depositions.” (June 26, 2026 Minute Order at p.6.) The Court also noted that even though Mr. Ross was not listed in the Third Amended Deposition Notice (which listed only five employees), this did not amount to a waiver of the remaining six employees

as ordered in the Court's May 22, 2026 order. The Court declines to reconsider the rulings on Plaintiff's motion to compel the employee depositions and LACMTA's motion for reconsideration for a third time.

Next, while LACMTA argues that Plaintiff relies on privileged documents produced by Woods, Plaintiff's request to depose Mr. Ross predated Woods' production of documents. Plaintiff noticed Mr. Ross's deposition on January 30, 2026 and thereafter filed a motion to compel the depositions of LACTMA's employees on March 2, 2026. It was months thereafter on May 3, 2026 that Mr. Schultz emailed LACMTA that it was in receipt of documents from Woods.

Finally, LACMTA provided Mr. Vazquez's declaration in support of the motion. However, his statements and opinions regarding Mr. Ross are based on the best of his knowledge or upon information and belief. Mr. Vazquez states that Mr. Ross's involvement arose from his participation of the investigation and "[t]o his knowledge, Mr. Ross's knowledge ... is therefore derived from post-incident investigative work," which based on his experience, role, and understanding, would be undertaken at the direction of counsel and in anticipation of litigation. (Vazquez Decl., ¶¶7-10.)

As discussed above, the Court has sustained a portion of Plaintiff's evidentiary objections to Mr. Vasquez's declaration. Even if considered, his statements are in part legal conclusions that Mr. Ross's investigative work was privileged. Furthermore, he has not stated whether he is County Counsel and, as counsel, directed Mr. Ross to conduct the post-incident investigation in anticipation of litigation, such that the Court cannot ascertain whether the attorney-client privilege and attorney work product apply. This is better explored during the deposition where Mr. Ross may provide his account on whether he was directed by counsel to undertake the post-incident investigation, whether this was done in anticipation of litigation, etc.

The motion for a protective order regarding Mr. Ross's deposition is denied.

B.

Peter Mellon

LACMTA moves for a

protective order so that Mr. Mellon's deposition not occur at all, arguing that he is not a percipient witness, his involvement arose solely from LACMTA's post-incident investigation undertaken at counsel's direction, and Plaintiff cannot use improperly produced documents by Woods despite LACMTA's privilege objections to depose him. LACMTA's arguments rely in large part on the same arguments made in the motion concerning Mr. Ross.

LACMTA relies on *Scripps*

Health v. Superior Court (2003) 109

Cal.App.4th 529, arguing that those documents were prepared in anticipation of litigation and, therefore, privileged.

In *Scripps Health*, the hospital withheld

producing five "occurrence reports" based on the attorney-client and work product privileges, stating in its privilege log that they were prepared in anticipation of litigation. The reports

stated in bold letters on the top: "CONFIDENTIAL: Not part of medical record /

Do not photocopy" and sought information about the occurrence and asked for an

evaluation of the significance level of the occurrence in terms of the

potential for claims or litigation. (*Scripps Health*, *supra*, 109 Cal.App.4th at 532.) The trial court granted the plaintiff's

motion for production of the reports, finding that the reports were administrative

in nature, were not necessarily forwarded to counsel or an insurer, and were

not necessarily prepared for the purpose of preparing to defend the hospital in

the event of a lawsuit. (*Id.*) The Court of Appeal reversed, finding the

dominant purpose of the reports was for transmittal to an attorney in the

course of the professional attorney-client relationship where the hospital

expected confidentiality. (*Id.* at

534.)

"Where ... a corporate employer requires that its

employees make a report, the privilege of that report is determined by the

employer's purpose in requiring the report. [Citation.] When the corporate

employer has more than one purpose in requiring the report, the dominant

purpose will control." (*Id.* at

533.) The Court of Appeal found that

even if the reports were not forwarded to counsel or an insurer, this

distinction was illusory because the hospital was self-insured and maintained

in-house counsel, required completion of confidential occurrence reports for

the purpose of attorney review, and intended the reports to be

confidential. (Id. at 534.) Such facts were supported by the hospital's corporate in-house counsel's declaration regarding the confidentiality of reports under its risk management plan pursuant to the legal department's directive, which was derived so that it could be self-insured. (Id. at 534-535.) The Court of Appeal found: "Here, the reports were 'primarily created for the purpose of attorney review whether or not litigation is actually threatened at the time a report is made.' Based on Scripps's self-insured status, the reports were also used by the risk managers as de facto insurance claims handlers. These facts, which plaintiffs did not dispute, compel a finding that the occurrence reports are attorney-client privileged communications." (Id. at 535.)

The Court finds Scripps Health distinguishable. Scripps Health involved the production of documents that were marked confidential and supported by in-house counsel's declaration stating that they were prepared in anticipation of litigation and for the purpose of attorney review. In contrast, this motion involves whether or not Mr. Mellon's deposition should go forward. A review of the Notice of Deposition of Defendant Los Angeles County Metropolitan Transportation Authority's Witnesses only seeks to depose various witnesses and is not accompanied by a request for production of documents. (See Mot. at Ex. 11.)

Furthermore, while LACTMA may have cited certain documents in its privilege log (and that Woods may have inadvertently produced to Plaintiff), the Court is unaware of whether those documents were marked confidential, whether they had language stating that the incident reports, photographs, and emails were for attorney review or done in anticipation of litigation. While such language on the documents themselves would not be controlling, the Court notes that LACTMA also has not provided a declaration from County Counsel detailing protocols and instructions to LACTMA employees regarding post-incident investigations and reports for the purpose of establishing the attorney-client and work product privileges.

At this point, the Court declines to impose a protective order preventing Mr. Mellon's deposition. As previously stated, if the deposition goes forward, LACTMA's counsel is not barred from raising substantiated privilege objections to specific questions. Furthermore, Plaintiff argues that Mr. Mellon may have unprivileged knowledge regarding vegetation conditions at the subject location,

which are central to Plaintiff's dangerous condition and negligence claims. (Opp. at p.2.)
Thus, his knowledge is not
isolated solely to post-incident investigation conduct.

The motion for a protective order regarding Ms. Mellon's
deposition is denied.

RULING:

In the event the
parties submit on this tentative ruling, or a party requests a signed order or
the court in its discretion elects to sign a formal order, the following form
will be either electronically signed or signed in hard copy and entered into
the court's records.

ORDER

Defendant Los Angeles County Metropolitan Transportation
Authority's Motions for Protective Order came
on regularly for hearing on August 7, 2026, with appearances/submissions as
noted in the minute order for said hearing, and the court, being fully advised
in the premises, did then and there rule as follows:

THE
MOTION FOR PROTECTIVE ORDER RE GARY ROSS IS DENIED.

THE
MOTION FOR PROTECTIVE ORDER RE PETE MELLON IS DENIED.

PLAINTIFF TO PROVIDE NOTICE.

IT
IS SO ORDERED.